

Prabhat Kumar v. State of U.P.

Allahabad High Court, Lucknow Bench · Division Bench · 22 July 2025 · 2025:AHC-LKO:41763-DB · Writ-C No. 6726 of 2025 · **Writ disposed of; petitioner relegated to prescribed remedies.**

HEADNOTE

Mandamus to restrain the licensee from giving connections to others from the petitioner's private line and pole was not decided. After counsel stated that the petitioner's own connection had been disconnected, the writ was disposed of with liberty to approach the concerned authorities or seek remedies prescribed in law. The licensee's reliance on clause 4.29 of the U.P. Electricity Supply Code, 2005 was not adjudicated.

FACTUAL SUMMARY

Prabhat Kumar sought a mandamus restraining the distribution licensee and State energy authorities from giving electricity connections to other persons from his private electric line and pole on Khasra No. 119. Counsel for the Electricity Corporation relied on clause 4.29 of the U.P. Electricity Supply Code, 2005 as permitting such connections from the petitioner's installation. During hearing, the petitioner's counsel stated that the petitioner's own electricity connection had been disconnected.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.29(b)

connection from consumer's private line or pole

HOLDING

The Court did not decide whether clause 4.29 of the Supply Code permits the licensee to give electricity connections to other persons from the petitioner's private line or pole. On the petitioner stating that his own connection had been disconnected, the writ was disposed of with liberty to approach the concerned authorities or seek remedies prescribed in law. ¶ 1

FLAG order cites Rule 4.29 without a subclause

PRINCIPLE TAGS

relegate-to-statutory-remedy Mandamus to restrain the licensee from giving connections to others from the petitioner's private line and pole was not decided.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER CLAUSE 4.29 OF THE SUPPLY CODE PERMITS THE LICENSEE TO GIVE ELECTRICITY CONNECTIONS TO OTHER CONSUMERS FROM THE PETITIONER'S PRIVATE ELECTRIC LINE OR POLE

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